

CUI

ATTENTION

Use this space to indicate categories, limited dissemination controls, special instructions, points of contact, etc., if needed.

Controlled by: Department of Navy
Controlled by: NAVSEA 02224
CUI Category: Procurement & Acquisition
Distribution/Dissemination Control: FED ONLY
POC: SEA 0222 Branch Head/Anthony O'Rourke

ATTENTION

All individuals handling this information are required to protect it from unauthorized disclosure.

Handling, storage, reproduction, and disposition of the attached document(s) must be in accordance with 32 CFR Part 2002 and applicable agency policy.

Access to and dissemination of Controlled Unclassified Information shall be allowed as necessary and permissible to any individual(s), organization(s), or grouping(s) of users, provided such access or dissemination is consistent with or in furtherance of a Lawful Government Purpose and in a manner consistent with applicable law, regulations, and Government-wide policies.

Standard Form 901 (11-18)
Prescribed by GSA/ISOO | 32 CFR.2002

CUI



DEPARTMENT OF THE NAVY
PROGRAM EXECUTIVE OFFICE SHIPS
1333 ISAAC HULL AVENUE SE
WASHINGTON NAVY YARD DC 20376-2101

IN REPLY REFER TO

J&A Number: 22,164

Code: 02224

P.R. Number: N00024-24-NR-55152

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION

1. Contracting Activity

The Naval Sea Systems Command (NAVSEA)
Shipbuilding Contracts Division, SEA 022

2. Description of the Action Being Approved

The proposed action is for a Brand Name Justification with competition among various sources to procure certain components and/or systems on the Explosive Ordinance Disposal (EOD) Multi-use Expeditionary Response Craft (MERC) boat. This solicitation will be competed among all eligible small business contractors and result in a single award contract; however, the requirement specifically references items listed in paragraph 3 using brand name descriptions, which necessitates this J&A in accordance with DFARS 206.302-1 and FAR 6.302-1 (c) (1).

3. Description of Supplies/Services

NAVSEA has a requirement to procure brand name equipment to support the acquisition of an estimated twenty-five (25) EOD MERC boats, including all options, with an estimated total contract value of [REDACTED]. The EOD MERC specification includes items that are both brand-name descriptions and brand-name or equal descriptions.

The following brand-name items are of a critical nature and do not have an equivalent product:

SWBS	Component/System	Price/ Each	Qty/ Boat	Price/ Boat	Price Source
084	Rough Terrain Trailer and SGLR Kit (Boatmaster)		1		Boatmaster quote
313	Batteries (Mastervolt)		4		Market Research
330	OCC/CAB Special Operations Light (Whelen)		1		Market Research
405	Tactical Antenna Installation (Trivec-Avant, Metropole, Shakespeare)		1		Quote and market research
422	Electronic Navigation System (Furuno)		1		Furuno.com
529	Fixed Manual Bilge Pump (Whale)		1		Quote
529	Electric Bilge Pump and Float Switch (Rule, Ultra Safety Systems)		2		Market Research
600	EPIRB (ACR)		1		Market Research
Total Brand Name					

The following brand-name or equal descriptions are presumed to have no equivalents; however, it is possible that an equivalent or potentially superior product or system may be found or become available:

SWBS	Component/System	Price/ Each	Qty/ Boat	Price/ Boat	Price Source
303	Circuit Breaker		20		Market Research
421	Magnetic Compass (Ritchie)		1		Market Research

441	VHF Marine Band Radio, Antennas (Standard Horizon, Shakespeare)	[REDACTED]	1	[REDACTED]	Market Research
443	Hailer / Siren (Whelen)	[REDACTED]	1	[REDACTED]	Market Research
581	Anchor (Fortress)	[REDACTED]	1	[REDACTED]	Market Research
Total Brand Name				[REDACTED]	

The Government's minimum needs have been verified by the certifying technical and requirements personnel. Estimated dollar value per fiscal year for these brand name items is as follows:

Estimated Dollar Value by Fiscal Year

	FY 2025
OPN	\$ [REDACTED]
Total	\$ [REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition

In accordance with 10 USC § 3204(a)(1), formerly 10 USC § 2304(c)(1), and section 888(a) of the National Defense Authorization Act for Fiscal Year 2017 (Pub. L. 114-328), the supplies required by NAVSEA are available from only one responsible source (brand name and brand name or equivalent) and no other type of supplies will satisfy the requirements. It is presumed that the brand name "or equal" items called out in the Specification do not have equivalents, but alternate items may be proposed.

5. Rationale Justifying Use of Cited Statutory Authority

The use of the brand name equipment is essential to achieve the standardization and commonality required by the Navy. The rationale for this requirement is to standardize the equipment (brand name) on the EOD MERC boats to what is currently on the in-service fleet deployed world-wide. These items are required to maintain system performance, leverage existing logistics support, cyber security validation, Government testing, and spectrum supportability. Changes to these items could also

result in substantial duplication of cost that is not expected to be recovered through competition. The following describes examples where maintaining commonality of these components/systems provides substantial cost savings, estimated at more than [REDACTED], to the Government.

- a. Logistics Support and In-Service Engineering Support, Naval Surface Warfare Center Carderock Division Detachment Norfolk (NSWCCDDN). Standardization and commonality leverages the existing logistics support products developed for use on existing EOD MERCs as well as the lessons learned on prior EOD MERCs through the lifecycle. Examples of typical approximate NSWCCDDN logistics costs to update/create new logistics packages and costs to provide In-Service Engineering Support are listed below:

Component/System	Supply Support	Technical Manuals*	Preventative Maintenance**
Structural Adhesive	[REDACTED]		[REDACTED]
Trailer	[REDACTED]		[REDACTED]
Engines	[REDACTED]		[REDACTED]
Vibration Isolators	[REDACTED]		[REDACTED]
Marine Gear	[REDACTED]		[REDACTED]
Waterjet	[REDACTED]		[REDACTED]
Controls	[REDACTED]		[REDACTED]
Fast Lube Oil Change System	[REDACTED]		[REDACTED]
Breakers	[REDACTED]		[REDACTED]
Batteries	[REDACTED]		[REDACTED]
Special Operations Light	[REDACTED]		[REDACTED]
Compass	[REDACTED]		[REDACTED]
Navigation Lights	[REDACTED]		[REDACTED]
Electronic Navigation System	[REDACTED]	[REDACTED]	[REDACTED]
VHF Marine Band Radio/Antennas	[REDACTED]		[REDACTED]
Hailer/Siren	[REDACTED]		[REDACTED]
Man Overboard Indicator	[REDACTED]		[REDACTED]
Fuel Hose	[REDACTED]		[REDACTED]
Electric Bilge Pump and Float Switch	[REDACTED]		[REDACTED]
Trim Tabs	[REDACTED]		[REDACTED]
Anchor	[REDACTED]		[REDACTED]
Pad-eye Tie-downs	[REDACTED]		[REDACTED]
Slings	[REDACTED]		[REDACTED]
Lift Frame Hook	[REDACTED]		[REDACTED]
Non-Skid	[REDACTED]		[REDACTED]
Seating	[REDACTED]		[REDACTED]
TOTAL	[REDACTED]	[REDACTED]	[REDACTED]

* [REDACTED] Also, an existing technical manual would be updated with any Boat Alterations, Technical Manual Deficiency Evaluation Reports (TMDERs) impacting the manual.

****Navigation Equipment & Communication Equipment** do not typically receive Preventative Maintenance. General care for these items is included in the technical manual pre-operation procedures.

Logistics support products which may be impacted by changes to the configuration include: maintenance planning and analysis; training and training support, including training equipment, curricula, and instruction materials; supply support; support equipment such as special tools and test equipment; technical documentation, such as Operations and Maintenance Manuals, Planned Maintenance System, Allowance Parts List, Product Technical Description, Technical Repair Standards, and software documentation; computer resource support; facilities for maintenance and training; unique packaging, handling, storage, and transportation requirements; and human engineering considerations.

In-Service Engineering Support which may be impacted by changes to the configuration nullify any existing operational data and lessons learned while increasing the risk of not meeting requirements and/or new issues occurring. The major attributes of form, fit, function, interface, reliability, and/or material to achieve a specific performance of the system within which it is used, and the boat as a whole are well understood. Input and output power, capacity, and other operating requirements for the integration of these items into both existing and future boats have been selected based on requirements of the boat's mission.

b. End User Supportability and Maintainability Navy

Expeditionary Combat Command (NECC). The cost impact to change the configuration of the systems specified above can vary with each location or region; however, the cumulative effect of cost impacts of all locations would significantly impact NECC's ability to fund and support operation and maintenance of these boats. Cost impacts to the entire NECC enterprise include development of operator training and training materials, Standard Operating Procedures, etc. Cost impacts to each location

impacted by a configuration change include tuition and travel for maintainer training and certifications, additional tooling/workshops, diagnostic software and licensing, spare systems and spare parts for availability requirements, and development of local supply/support/maintenance agreements and/or contracts.

Item	Per Region	Total (7 regions)
Operator Training / Training Materials	[REDACTED]	[REDACTED]
Maintainer Training and Certification	[REDACTED]	[REDACTED]
Additional tooling/workshops/diagnostic software/licensing	[REDACTED]	[REDACTED]
Spare Engines and Parts	[REDACTED]	[REDACTED]
Development of Local Supply/Support/Maintenance Agreements and/or Contracts	[REDACTED]	[REDACTED]
TOTAL	[REDACTED]	[REDACTED]

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

The Requests for Information for the proposed contract was issued on the Government-wide Point of Entry (GPE), SAM.gov website on 01 May 2023. Responses were received from [REDACTED] vendors that are interested in and capable of performing the requirements. An update to the RFI which included the brand name items was released on SAM.gov on 08 August 2024 notifying builders of the related equipment that will be specified on the EOD MERCs. Responses were received from six (6) vendors that are interested in and capable of performing the requirements. [REDACTED]

In accordance with FAR 5.102(a)(6), the Contracting Officer will include this J&A with the solicitation when publicized on the PIEE website.

7. Determination of Fair and Reasonable Costs

This requirement is for commercial items. As such, the Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by the brand name J&A will be fair and reasonable. Price Analysis will be utilized to determine the fair and reasonable price prior to award. Furthermore, this contract award will be based on competition and these systems have multiple distributors which enables competitive pricing. Therefore, the prices of the brand name equipment contributing to the total price are expected to be determined fair and reasonable based on adequate price competition.

8. Actions to Remove Barriers to Competition

For the reasons set forth in Paragraph 5, NAVSEA intends to specify the brand name and brand name or equal equipment for EOD MERC boats under this contract vehicle. The contract will be awarded as a result of a competitive small business set aside. The Government will continue to monitor sources for the brand name and brand name or equal items, and if another potential source emerges, will assess whether the requirements can be competed.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(c))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data, except as noted herein, are complete and accurate to the best of my knowledge and belief.

COMBINED TECHNICAL AND REQUIREMENTS COGNIZANCE:

Signature Name (Print) and Title(Code) Phone No. Date

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90))

I have determined this justification is legally sufficient.

Signature Name (Print) and Title(Code) Phone No. Date

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(b)(12))

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature Name (Print) and Title(Code) Phone No. Date

APPROVAL BLOCK (FAR 6.304 for Approving Official)

Upon the basis of the above justification, I hereby approve, as the Designee of the Head of the Contracting Activity, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 USC § 3204(a)(1).

SEA 022 Division Director

Signature

Name (Print)

Date